

## 24CHCV03451 24CHCV03451

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-08-10

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=CHA%2CF43%2C08%2F10%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF43%2C08%2F10%2F2026)

Source SHA-256: 0f690cba84e617f728b273416f5a2a9f9a34400f5395c3dfa1d9146ec761a3e3

Case Number: 24CHCV03451 Hearing Date: August 10, 2026 Dept: F43

Dept. F43

Hearing Date: 08-10-26

Case # 24CHCV03451, Gaytan v. Caruso's  
Italian Kitchen, et al.

Trial Date: 10-02-28

MOTION TO BE RELIEVED  
AS COUNSEL

MOVING PARTY: James Howard and the Law Offices of James  
Howard

RESPONDING PARTY: No responses were filed.

RELIEF REQUESTED

Attorney James Howard and the Law Offices of  
James Howard, counsel of record for defendant Caruso's Cucina Italiana, seeks  
to be relieved as counsel for that party.  
Counsel has filed and served the required forms MC-051, MC-052, and  
MC-053 on the defendant.

Counsel's declaration states his office  
erroneously filed an Answer on November 7, 2025, which names several  
defendants, including defendant Caruso's Cucina Italiana. However, Caruso's Cucina should not have been

named in the answer. Counsel recently learned during discovery that his client, defendant Hani Mammo, has no relationship with Caruso's Cucina and had never instructed counsel to file an answer on the entity's behalf. The erroneous filing resulted from miscommunication and the similarity of the names Caruso's Cucina Italiana and Caruso's Italian Kitchen.

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince, (1968) 268 Cal.App.2d 398, 406.) Because there is no showing of prejudice, and counsel has complied with the requirements in California Rules of Court, rule 3.1362(c)-(e), the court grants the motion.

CONCLUSION and ORDER

Motion is granted.

Attorney James Howard to give notice.